SUPREME COURT OF THE UNITED STATES

KARI BECK, PERSONAL REPRESENTATIVE OF THE ESTATE OF CAMERON GAYLE BECK, ET AL. *v.* UNITED STATES

ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE EIGHTH CIRCUIT

No. 24–1078. Decided November 24, 2025

The petition for a writ of certiorari is denied. JUSTICE GORSUCH would grant the petition for a writ of certiorari.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

As my colleague rightly explains, *Feres* v. *United States*, 340 U. S. 135 (1950), is a difficult decision to justify. See *post*, at 3–5 (THOMAS, J., dissenting from denial of certiorari). Since it was decided 75 years ago, *Feres*'s atextual expansion of the Federal Tort Claims Act (FTCA), 28 U. S. C. §2671 *et seq*., has garnered near-universal criticism; has caused significant confusion; and has deprived servicemembers and their families of redress for serious harms they have suffered during service to this country. *Post*, at 3–5, 7–8. Like in this case, *Feres* has worked such harms even in circumstances far removed from the expected risks of military service. It has, for example, barred recovery for claims arising from medical malpractice, sexual assault, and (as here) car accidents, even when those harms occur on U. S. soil, bear little relation to the military itself, and just as easily could have befallen any American civilian. See *Feres*, 340 U. S., at 137; *post*, at 7–8.

Even so, out of respect for the Court's rules of *stare decisis*, and in recognition of the reliance interests that *Feres* has generated, I vote to deny this petition for a writ of certiorari. Beyond the "special justification" that is needed to overrule any of our precedents, *stare decisis* has "enhanced

force" on questions of statutory interpretation. *Kimble* v. *Marvel Entertainment, LLC*, 576 U. S. 446, 456 (2015). That is because, unlike with decisions of constitutional dimension, "Congress exercises primary authority" over statutory questions "and 'remains free to alter what we have done.'" *Michigan* v. *Bay Mills Indian Community*, 572 U. S. 782, 799 (2014); see *Global-Tech Appliances, Inc.* v. *SEB S. A.*, 563 U. S. 754, 765 (2011) (explaining the "'"special force"' . . . of *stare decisis* with regard to questions of statutory interpretation"). This "respect for Congress's decision not to intervene promotes the separation of powers by requiring interested parties to resort to the legislative rather than the judicial process to achieve their policy goals." *Groff* v. *DeJoy*, 600 U. S. 447, 474–475 (2023) (SOTOMAYOR, J., concurring). Moreover, the "justification for statutory *stare decisis* is especially strong" when Congress has considered but "spurned multiple opportunities to reverse" the Court's interpretation of a statute. *Id.*, at 475.

That is the case here. Congress has often considered legislation that would overrule or limit the *Feres* doctrine. See, *e.g.*, H. R. 1517, 112th Cong., 1st Sess., §4 (2011); S. 1347, 111th Cong., 1st Sess., §2 (2009); H. R. 2684, 107th Cong., 1st Sess., §1 (2001); S. 347, 100th Cong., 1st Sess. (1987). Indeed, Congress most recently did so in 2019, see S. 1790, 116th Cong., 1st Sess., §729 (amendment as passed in the House), but ultimately decided to provide payments for certain service-related medical-malpractice claims under the Military Claims Act rather than the FTCA, see National Defense Authorization Act for Fiscal Year 2020, §731, 133 Stat. 1457–1460, 10 U. S. C. §2733a.

Congress, therefore, is "undoubtedly aware of" the problems posed by *Feres* and "can change [*Feres*] if it likes." *Allen* v. *Milligan*, 599 U. S. 1, 39 (2023). "[U]ntil and unless it does, statutory *stare decisis* counsels our staying the course." *Ibid.* I write, however, to underscore that this important issue deserves further congressional attention,

without which *Feres* will continue to produce deeply unfair results like the one in this case and the others discussed in JUSTICE THOMAS's dissenting opinion. See *post*, at 7–8.